

2016 SCC OnLine All 1675

In the High Court of Allahabad
(BEFORE NARAYAN SHUKLA AND ANANT KUMAR, JJ.)

Smt. Soni Dwivedi Petitioner

v.

Madhyanchal Vidyut Vitran Nigam Ltd. Thru. Its
Chairman & Ors. Respondents

Misc. Bench No. 16565 of 2016

Decided on July 19, 2016

Counsel for Petitioner:- Manish Jauhari, Ambuj Kumar Bajpai, Mohit Jauhari

Counsel for Respondent:- Prashant Arora

1. Heard Mr. Manish Jauhari, learned counsel for the petitioner as well as Mr. K.M. Shukla, learned counsel for the Electricity Corporation.

2. The petitioner has assailed the order dated 10 March 2016 passed by the opposite party No. 4, whereby the petitioner's application for electricity connection has been rejected on the ground that there are dues in the name of erstwhile owner/occupier of the premises.

3. Mr. Jauhari, learned counsel for the petitioner has submitted that petitioner has purchased House No. 65/37 situated at Chhetwapur, Road Lal Kuan, Lucknow P.S. Hussainganj, Lucknow free from all encumbrances as laid down in the sale deed itself that if any dues/taxes are there it is the seller who shall liable to pay it. He has further contended that the Hon'ble Supreme Court in *Isha Marbles v. Bihar State Electricity Board* (1995) 2 SCC 648 has held that it is impossible to impose on the purchasers a liability which was not incurred by them, it has been submitted that accordingly the petitioner cannot be said to be liable to pay the electricity dues incurred on the seller.

4. In reply Mr. K.M. Shukla, learned counsel for the electricity corporation has placed the provision of para 4.1 of Chapter IV of the Electricity Supply Code, 2005, we quote the provision as under:—

“4.1. Licensee's Obligation to Supply.- The Licensee shall on an application by the owner or occupier of any premises, located in his area of supply, give supply of electricity to such premise within the one month after receipt of completed application [showing payment of necessary charges and other compliances].

Provided where such supply requires extension of distribution mains, or commissioning of new sub-stations, the distribution

Licensee shall supply the electricity to such premises immediately after such extension or commissioning or within such period as specified by the Commission in clause 4.8:

Provides also in case of application for supply from a village or hamlet or area wherein no provision for supply of electricity exists, the Commission shall extend the time period for provision of supply appropriately on a case to case basis:

[Provided further that in case arrears of electricity dues in respect of any of old consumers/premises where ownership has changed, the new connection shall be released to the new owners only after submission of No-Dues Certificate as provided in clause 4.3(f):]

[And provided that if there are arrears of electricity dues on a premises, a new connection shall not be released to a new applicant/or the old consumer on the same premises. The connection shall also not be released if],—

- (i) The applicant (being an individual) is an associate or relative (as defined in Section 2 & 6 respectively of the Companies Act, 1956) of the defaulting consumer,
- (ii) Or where the applicant being a company or body corporate or association or body of individuals, whether incorporated or not, or artificial juridical person, is controlled, or having controlling interest in the defaulting consumer, provided, the Licensee shall not refuse electric connection on this ground, unless an opportunity to present his case is provided to the applicant and a reasoned order is passed by an officer as designated by the licensee."

5. Para 4.1 of the Code provides that the licensee shall on an application by the owner or occupier of any premises, located in his area of supply, give supply of electricity, whereas third proviso of para 4.1 provides that in case of arrears of electricity dues in respect of any of old consumers/premises where ownership has changed, the new connection shall be released to the new owners only after submission of No-Dues Certificate as provided in clause 4.3(f) and that if there are arrears of electricity dues on a premises, a new connection shall not be released to a new applicant/or the old consumer on the same premises.

6. In view of the aforesaid submissions, the learned counsel for the electricity corporation has submitted that since there is a dues of electricity charges against the house in question may be upon the sellers, but in terms of conditions laid down above under the code no electricity connection can be provided to the petitioner.

7. In view of the aforesaid submissions, we have gone through the judgment of the Supreme Court and found that the Supreme Court had dealt with the provisions in the context of the Electricity Act, 1910

read with Bihar and Orissa Public Demands and Recovery Act, 1914. The Supreme Court has held that the auction-purchaser cannot be said to be a consumer or occupier within the provisions of Electricity Act. It further held that law is inadequate to enforce the liability of the previous contracting party against the auction purchaser who is a third party and is in no way connected with the previous owner/occupier.

8. Definitely under the terms of sale deed executed between the parties of the case on hand the liability of arrears have been shouldered upon the sellers, but since we deal with the case of electricity connection which would be a new under the Electricity Supply Code, 2005, we find that the procedure for grant of electricity supply makes it condition precedent to clear the previous dues before the installation of a new connection since the provisions of particular code which governs the field does not permit the new electricity connection unless the arrears of electricity dues are clear.

9. In view of the aforesaid provisions of law we are of the view that if the petitioner is interested to get the electricity connection in his favour in the premise in question, it may enforce the condition laid down in the sale deed against the seller, but his liability towards the electricity department does not absolve particularly when he seeks a new connection to his name, for payment of arrears. Accordingly, we do not find error in the order impugned.

10. In the result the writ petition stands dismissed.

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